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Case Name: *Tammy Read v. Timothy Cook, et al.*

Case No.: 26CV485245 (Consolidated with 26CV497503)

This is a shareholder derivative action on behalf of Apple Inc. (“Apple”), which arises from the allegedly wrongfully refused litigation demand made by Plaintiff Tammy Read upon Apple’s Board of Directors. The action is brought against defendants Timothy Cook, Katherine Adams, Eddy Cue, Craig Federighi, Greg Joswiak, Jeff Williams, Arthur Levinson, Alex Gorsky, Andrea Jung, Monica Lozano, Ronald Sugar, Susan Wagner, and Wanda Austin (collectively with Apple, “Defendants”).⁹

Before the Court is (1) Plaintiff’s motion to file her complaint and certain exhibits under seal; and (2) Apple’s motion to seal, which are both unopposed. As discussed below, the Court GRANTS Plaintiff’s motion to seal and GRANTS Apple’s motion to seal.

I. LEGAL STANDARD

“The court may order that a record be filed under seal only if it expressly finds facts that establish: (1) There exists an overriding interest that overcomes the right of public access to the record; (2) The overriding interest supports sealing the record; (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exist to achieve the overriding interest.” (Cal. Rules of Court, rule 2.550(d).) Pleadings, in particular, should be open to public inspection “as a general rule,” although they may be filed under seal in appropriate circumstances. (*Mercury Interactive Corp. v. Klein* (2007) 158 Cal.App.4th 60, 104, fn. 35.)

“Courts have found that, under appropriate circumstances, various statutory privileges, trade secrets, and privacy interests, when properly asserted and not waived, may constitute overriding interests.” (*In re Providian Credit Card Cases* (2002) 96 Cal.App.4th 292, 298, fn. 3 (*Providian*).) Confidential matters relating to the business operations of a party may be sealed where public revelation of the information would interfere with the party’s ability to effectively compete in the marketplace. (See *Universal City Studios, Inc. v. Superior Court* (2003) 110 Cal.App.4th 1273, 1285–1286.)

Rule 2.550 does not directly apply to “discovery motions and records filed or lodged in connection with discovery motions or proceedings.” (See Cal. Rules of Court, rule 2.550(a)(3); *H.B. Fuller Co. v. Doe* (2007) 151 Cal.App.4th 879, 892-893 (*Fuller*) [the discovery process would be impeded if a presumptive right of public access to records disclosed under protective orders and filed in connection with routine discovery motions were imposed].) Nonetheless, even in discovery proceedings, a party moving for leave to file records under seal must identify the specific information claimed to be entitled to confidentiality and the nature of the harm threatened by disclosure. (See *Fuller, supra*, 151 Cal.App.4th at p. 894.)

Where some material within a document warrants sealing, but other material does not, the document should be edited or redacted if possible, to accommodate both the moving party’s overriding interest and the strong presumption in favor of public access. (Cal. Rules of Court, rule 2.550(d)(4), (5).) In such a case, the moving party should take a line-by-line approach to the information in the document, rather than framing the issue to the court on an all-or-nothing basis. (*Providian, supra*, 96 Cal.App.4th at p. 309.)

⁹ On August 7, 2026, the Court signed the parties’ stipulation consolidating the instant action with *Hodge v. Cook, et al.* (26CV497503).

II. PLAINTIFF’S MOTION TO SEAL

Plaintiff moves for an order permitting her to file the Complaint and certain exhibits under seal. (See Complaint, ¶¶ 15, 17-19, 110-112, 114, 116-119; Exhs. D-H.)

A. Discussion

On December 6, 2024, the parties entered into a Confidentiality and Nondisclosure Agreement (the “Agreement”) related to non-privileged documents and information considered to be non-public, confidential, proprietary, and/or commercially sensitive information of Apple. (Motion, p. 1:22-26.) The Agreement requires Plaintiff to file under seal any document containing or referencing “Confidential Material,” and it designates all information derived therefrom as “Confidential Material” subject to all terms and conditions of the Agreement. (Motion, pp. 1:26-2:2.)

Here, Apple has an overriding interest that supports sealing the records and overcomes the right of public access because the Confidential Material contains Apple’s sensitive business information, which Plaintiff quotes, paraphrases, characterizes, and/or references the Agreement in the Complaint. (Motion, p. 2:24-28.) The parties entered into the Agreement after recognizing that public disclosure of the Confidential Material would put Apple at a competitive disadvantage. (Motion, p. 3:13-15.) If the Confidential Material is not sealed, there is a substantial probability that Apple’s business interest would be prejudiced because the disclosure would interfere with Apple’s ability to effectively compete and negotiate in the marketplace and it has taken steps to designate the information as confidential. (Motion, p. 3:19-23.) Plaintiff’s request is narrowly tailored to protect only the Confidential Material described herein and no less restrictive means exists to do so. (Motion, p. 3:25-26.) The proposed sealing covers only the portions of the Complaint and certain exhibits referencing the Confidential Material, affecting only portions of eleven paragraphs out of a 42-page document and five exhibits referenced within. (Motion, p. 3:26-28.) Based on the foregoing, the Court finds that the Plaintiff sufficiently establishes an overriding interest that justifies sealing this information and that the other factors set forth in rule 2.550 are satisfied. (See *Universal*, *supra*, 110 Cal.App.4th 1273 at p.1286 [confidential information relating to a party’s business operations can be sealed].)

Accordingly, Plaintiff’s motion to seal is GRANTED.

III. APPLE’S MOTION TO SEAL

Apple moves to seal portions of Plaintiff’s Complaint. (See Complaint, ¶¶ 15, 17-19, 111-112, 114, 116-117, Exhs. E, F, H.)

A. Discussion

Apple has an overriding interest that overcomes the right of access and supports sealing the proposed redactions. (Motion, p. 2: 8-9.) The information to be sealed includes sensitive and non-public Board records, as well as communications regarding the Board’s deliberations. (Motion, p. 2:15-17.) The Board’s deliberations reflect strategic business decisions regarding sensitive non-public business and legal matters, including the information considered by the Board and the Board’s rationale for strategic decisions about whether and when to investigate Plaintiff’s allegations. (Motion, p. 2:17-20.) Apple has taken measures in its regular course of business to keep the Board’s records and deliberations highly confidential. (Motion, p. 3: 5-6.) Apple limits access to this information on a need-to-know basis and maintains technical controls to prevent inadvertent disclosure. (Motion, p. 3:6-8.) Public disclosure of Apple’s highly confidential internal business information will prejudice Apple’s overriding interest. (Motion, p. 3:11-12, 17-22.) The proposed redactions are narrowly tailored and no less restrictive means exist to protect Apple’s overriding interest.

Based on the foregoing, the Court finds that Apple sufficiently establishes Apple's overriding interest that justifies sealing this information and that the other factors set forth in rule 2.550 are satisfied. (See *Universal, supra*, 110 Cal.App.4th 1273 at p.1286 [confidential information relating to a party's business operations can be sealed].)

Accordingly, Apple's motion to seal is GRANTED.

IV. CONCLUSION

V.

Plaintiff's motion to seal is GRANTED. Apple's motion to seal is GRANTED.

The Court will prepare the final order.

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Calendar Line 10

Case Name: *Cruz v. Wellnessmart M.D., et al.*
Case No.: 24CV440175

This is a putative class and Private Attorneys General Act (“PAGA”) action. Plaintiffs Ashley Cruz and Breenea Walker (collectively, “Plaintiffs”) allege that defendant Wellnessmart M.D. committed various wage and hour violations.

Before the Court is Plaintiffs’ motion for final approval of settlement, which is unopposed. As discussed below, the Court GRANTS the motion.

XXV. BACKGROUND

According to the allegations of the operative first amended complaint (“FAC”), Defendant employed Plaintiffs as hourly-paid or non-exempt employees. (FAC, ¶ 17.) Defendant failed to, among other things: provide meal periods or compensation in lieu thereof; provide rest periods or compensation in lieu thereof; pay minimum wages; timely pay wages; and provide complete and accurate wage statements.

Based on the foregoing, Plaintiff Cruz initiated this action with the filing of the complaint on May 30, 2024 and on July 7, 2025, Plaintiffs filed their operative FAC, which asserts the following causes of action: (1) violation of Labor Code §§ 510 and 1198 (unpaid overtime); (2) violation of Labor Code §§ 226.7, 512, subdivision, (a) (unpaid meal period premiums); (3) violation of Labor Code §§ 226.7 (unpaid rest period premiums); (4) violation of Labor Code §§ 1194, 1197 (unpaid minimum wages); (5)) violation of Labor Code §§ 201 and 202 (final wages not timely paid); (6) violation of Labor Code § 226, subd. (a) (non-compliant wage statements); (7) violations of Labor Code §§ 2800 and 2802 (unreimbursed business expenses); (8) violation of Labor Code § 2698, *et seq.* (Private Attorneys General Act of 2004); and (9) violation of Business & Professions Code § 17200, *et seq.* On February 25, 2026, the Court issued its order, which granted Plaintiffs’ motion for preliminary approval of class action and PAGA settlement.

Plaintiffs now move for an order finally approving: the class action and PAGA settlement (the “Settlement”); attorneys’ fees and costs; Plaintiffs’ service awards; settlement administration costs to CPT Group, Inc. (“CPT”); and PAGA penalties.

XXVI. LEGAL STANDARDS FOR SETTLEMENT APPROVAL

B. Class Action

Generally, “questions whether a [class action] settlement was fair and reasonable, whether notice to the class was adequate, whether certification of the class was proper, and whether the attorney fee award was proper are matters addressed to the trial court’s broad discretion.” (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 234–235 (*Wershba*), disapproved of on other grounds by *Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal.5th 260.)